

Srinivas Krishna Katageri vs Niharika Srinivas Katageri on 24 March, 2022

Author: Nitin W. Sambre

Bench: Nitin W. Sambre

CRA-65-20

BDP-SPS-TAC

IN THE HIGH COURT OF JUDICATURE AT BOMBAY

BHARAT
DASHARATH
PANDIT

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CIVIL APPELLATE JURISDICTION
CIVIL REVISION APPLICATION NO. 65 OF 2022

Date: 2022.03.24
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Mr. Srinivas Krishna Katageri	 Applicant.
V/s	
Mrs. Niharika Srinivas Katageri	 Respondent.
Mrs. M.M. Deshmukh i/b Milind Deshmukh for the Applicant.	
Mr. Shailesh Chavan i/b Ms. Prasanna K. Shahane for Respondent.	

CORAM: NITIN W. SAMBRE, J.

DATE: MARCH 24, 2022 P.C.:-

1] A joint request is made by the parties to this Civil Revision Application for withdrawal of the Application-Exhibit-8 with liberty to take out fresh proceedings. That being so, Application-Exhibit-8 stands disposed of as withdrawn.

2] As a consequence of above, parties to the Civil Revision Application are at liberty

to take out fresh proceedings for waiver of notice period contemplated under Section 13 of the Hindu Marriage Act in the matter of divorce by mutual consent.

CRA-65-2022.doc 3] I am informed that both the parties intend to move a joint application for the same, depicting appropriate details. Once such application is tendered, this Court expects the Court below to decide the same forthwith considering the fact that non-applicant claims to be getting an opportunity of overseas employment which is not procured but for pendency of these proceedings.

4] Present Revision Application as such stands disposed of. Needless to clarify that fresh application made for waiver of notice period shall be decided without being influenced by withdrawal of the present Civil Revision Application.

(NITIN W. SAMBRE, J.)